Zimbabwe

Maintenance of Peace and Order Act, 2019

Chapter 11:23

Legislation as at 15 November 2019

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Zimbabwe

Maintenance of Peace and Order Act, 2019

Chapter 11:23

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AN ACT to make provision for the maintenance of peace, order and security in Zimbabwe; to repeal the Public Order and Security Act *[Chapter 11:17]*; and to provide for matters connected with or incidental to the foregoing.

WHEREAS section 86 of the Constitution provides in part as follows—

86 Limitation of rights and freedoms

(1) The fundamental rights and freedoms set out in this Chapter must be exercised reasonably and with due regard for the rights and freedoms of other persons (2) The fundamental rights and freedoms set out in this Chapter may be limited only in terms of a law of general application and to the extent that the limitation is fair, reasonable, necessary and justifiable in a democratic society based on openness, justice, human dignity, equality and freedom, taking into account all relevant factors, including—

(a) the nature of the right or freedom concerned;

(b) the purpose of the limitation, in particular whether it is necessary in the interests of defence, public safety, public order, public morality, public health, regional or town planning or the general public interest;

(c) the nature and extent of the limitation;

(d) the need to ensure that the enjoyment of rights and freedoms by any person does not prejudice the rights and freedoms of others;

(e) the relationship between the limitation and its purpose, in particular whether it imposes greater restrictions on the right or freedom concerned than are necessary to achieve its purpose; and

(f) whether there are any less restrictive means of achieving the purpose of the limitation.

AND WHEREAS it is desirable to make provision for the maintenance of peace, order and security to ensure the enjoyment of rights and freedoms by any person, and in particular to make provision for the peaceful conduct of gatherings in a manner that protects the rights of freedom of assembly, association, demonstration and petitioning without prejudicing the rights and freedoms of others:

NOW, THEREFORE, be it enacted by the Parliament and the President of Zimbabwe as follows—

Part I – Preliminary

1. Short title

This Act may be cited as the Maintenance of Peace and Order Act *[Chapter 11:23]*.

2. Interpretation

In this Act—

"**authorised officer**" means a police officer appointed in terms of section 5(4) or (5);

"**convener**" means—

(a) any person who, of his or her own accord, convenes a gathering; and

(b) in relation to any organisation, any person appointed by such organisation in terms of section 5(1);

"**convening notice**" means a notice of a gathering referred to in section 7;

"**election period**" has the meaning given to that term by the Electoral Act *[Chapter 2:13]*;

"**gathering**" means—

(a) a procession or public demonstration; or

(b) a public meeting;

"**meeting**" means a meeting held for the purpose of the discussion of matters of public interest or for the purpose of the expression of views on such matters;

"**Minister**" means the Minister of Home Affairs and Cultural Heritage or any other Minister to whom the President may, from time to time, assign the administration of this Act;

"**organisation**" means any association, group or body of persons, whether or not such association, group or body has been incorporated, established or registered in accordance with any law, and includes any branch thereof;

"**peace officer**" has the meaning given to that term in section 2 of the Criminal Procedure and Evidence Act *[Chapter 9:07]*;

"**police district**" means an area designated by the Commissioner General of Police as a police district for the purposes of the administration of the Police Service;

"**procession**" means a procession in a public place;

"**prohibition notice**" means a notice prohibiting a procession or public demonstration referred to in section 8(9);

"**private place**" means any place that is not a public place;

"**public gathering**" means a public meeting or a public demonstration;

"**public demonstration**" means a procession, gathering or assembly in a public place of persons and additionally, or alternatively, of vehicles, where the gathering is in pursuit of a common purpose of demonstrating support for, or opposition to, any person, matter or thing, whether or not the gathering is spontaneous or is confined to persons who are members of a particular organisation, association or other body or to persons who have been invited to attend;

"**public meeting**" means any meeting of more than fifteen persons in a public place or meeting which the public or any section of the public is permitted to attend, whether on payment or otherwise, but does not include a meeting of any organ or structure of a political party or other organisation held in—

(a) any private place, whether or not it is wholly or partly in the open; or

(b) any public place that is not wholly in the open;

"**public place**" means any thoroughfare, building, open space or other place of any description to which the public or any section of the public have access, whether on payment or otherwise and whether or not the right of admission thereto is reserved;

"**publication**" includes a document, book, magazine, film, sound or visual broadcast, tape, disc or other material, medium or thing whatsoever in which, on which or by means of which a statement may be made;

"**regulating authority**", in relation to any area, means the police officer who, in terms of section 3, is the regulating authority for that area;

"**responsible officer**" means a person appointed in terms of section 6(1) as responsible officer or deputy responsible officer, and includes any person deemed in terms of section 6(3) to be a responsible officer;

"**statement**" means any expression of fact or opinion, whether made orally, in writing, electronically or by visual images;

"**thoroughfare**" means any road, street, lane, path, pavement, sidewalk or similar place which exists for the free passage of persons or vehicles.

3. Regulating authorities

(1) The police officer in command of each police district shall be the regulating authority for that police district.

(2) Whenever in this Act a convener is required to give a convening notice to a regulating authority, such notice shall be deemed to have been duly given if delivered to the police officer in charge of a police station closest in proximity to the place where the gathering is proposed to be held or, in the absence of the police officer in charge, the most senior officer present in that police station.

(3) The police officer referred to in subsection (2) shall immediately notify the regulating authority of a convening notice received under that subsection.

4. Temporary prohibition of possession of certain weapons within particular police districts

(1) Without derogation from section 28 ("Possession of dangerous weapons") of the Criminal Law Code, if a regulating authority believes that the carrying in public (whether openly or by concealment in a public place or public thoroughfare) or public display of any of the following weapons or items capable of use as weapons namely, catapults, machetes, axes, knobkerries, swords, knives or daggers is likely to occasion public disorder or a breach of the peace, he or she may within his or her police district prohibit for a specified period of time not exceeding three months the carrying in public or public display of any such weapons or items capable of use as weapons as he or she shall specify:

Provided that on expiry of the prohibition the regulating authority shall not, within a period of twelve months, renew the prohibition except on good cause shown on oath to a Magistrate having jurisdiction in the area where the prohibition is to take effect, upon an *ex parte* application by the regulating authority concerned.

(2) A prohibition issued under subsection (1) shall not have effect until it is published—

(a) in a newspaper circulating in the area to which the prohibition applies; or

(b) by notices distributed among the public or affixed upon public buildings in the area to which the prohibition applies; or

(c) by announcement of a police officer broadcast or made orally; or

(d) by communication through the traditional leadership in the area where the prohibition is to take effect.

(3) Any person who is aggrieved by a prohibition issued under subsection (1) may appeal against it to the Minister, and the Minister may confirm, vary or set aside the prohibition or give such order or direction in the matter as he or she thinks just.

(4) Any person who fails to comply with a prohibition made under subsection (1) shall be guilty of an offence and liable to a fine not exceeding level 5 or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

(5) A police officer may, without warrant, seize any weapon or item capable of use as a weapon found in the possession of any person in contravention of subsection (1), and shall place in safe custody

every weapon or item so seized so that it may be submitted to the jurisdiction of the court to be dealt with in accordance with section 20.

Part II – Gatherings

5. Appointment of conveners and authorised officers in the case of processions and public demonstrations

(1) An organisation intending to hold a procession or a public demonstration shall appoint—

(a) a person to be responsible for the arrangements for that procession or public demonstration and to be present thereat, to give notice in terms of section 7 and to act on its behalf at any consultations or negotiations contemplated in section 8, or in connection with any other procedure contemplated in this Act at which his or her presence is required; and

(b) a deputy to a person appointed in terms of subparagraph (a).

(2) Such organisation shall forthwith notify in writing the regulating authority concerned of the names and addresses of the persons appointed under subsection (1).

(3) If a person appointed in terms of subsection (1) is or becomes unable to perform or to continue to perform his or her functions in terms of this Part, the organisation shall forthwith appoint another person in his or her stead, and a person so appointed shall be deemed to have been appointed in terms of subsection (1).

(4) The regulating authority or a person authorised thereto by him or her shall authorise one or more suitably qualified and experienced police officers, either in general or in a particular case, to represent the regulating authority at consultations or negotiations contemplated in section 8, and to perform such other functions as are conferred or imposed upon an authorised officer by this Part.

(5) If an authorised officer is or becomes unable to perform or to continue to perform his or her functions in terms of this Part, the regulating authority or a person authorised thereto by him or her shall forthwith designate another police officer to act in his or her stead, either in general or in a particular case, and the officer so designated shall be deemed to have been authorised in terms of subsection (4) for the purposes contemplated in that subsection.

(6) A regulating authority may delegate all or any of his or her functions under this Part to one or more authorised officers, in which event any reference to a "regulating authority" in this Part is a reference to any one or more such officers.

(7) If any consultations, negotiations or proceedings in terms of this Part at which the presence of a convener or an authorised officer is required, are to take place and such convener or officer is not available, such consultations or negotiations or other proceedings may be conducted in the absence of such convener or officer through any proxy appointed by such convener or officer in terms of subsection (3) or (5), as the case may be, and the organisation or regulating authority, as the case may be, shall be bound by the result of such consultations, negotiations or proceedings as if it or they had agreed thereto.

(8) For the purpose of helping a regulating authority to ascertain that a meeting is not a "public meeting" as defined in section 2 because it is asserted to be a meeting of any organ or structure of a political party or other organisation, the regulating authority may request the political party or other organisation concerned to submit to it from time to time or at such regular intervals as it may require a list of the members of the organs or structures of the political party or organisation who are entitled to attend the meeting concerned.

6. Appointment of responsible officers in the case of public meetings

(1) An organisation intending to hold a public meeting shall appoint—

(a) a person to be responsible for the arrangements for that public meeting and to be present thereat, to give notice in terms of section 7 and to act on its behalf at any consultations or negotiations contemplated in section 8, or in connection with any other procedure contemplated in this Act at which his or her presence is required; and

(b) a deputy to a person appointed in terms of subparagraph (a);

and such responsible officer shall be treated as the convener for all purposes of this Part.

(2) Such organisation shall forthwith notify in writing the regulating authority concerned of the names and addresses of the persons appointed under subsection (1).

(3) If a person appointed in terms of subsection (1) is or becomes unable to perform or to continue to perform his or her functions in terms of this Part, the organisation shall forthwith appoint another person in his or her stead, and a person so appointed shall be deemed to have been appointed in terms of subsection (1).

7. Notice of processions, public demonstrations and public meetings

(1) The convener shall not later than—

(a) seven days before the date on which a procession or public demonstration is to be held, give notice of the procession or public demonstration in writing signed by him or her to the regulating authority for the district in which the procession or public demonstration is to be held;

(b) five days before the date on which a public meeting is to be held, give notice of the public meeting in writing signed by him or her to the regulating authority for the district in which the public meeting is to be held:

Provided that—

(i) if the convener is not able to reduce a proposed convening notice to writing a regulating authority shall at the convener's request do it for him or her;

(ii) during an election period the period of notice referred to in paragraph (b) shall be three days.

(2) The convening notice shall contain at least the following information—

(a) the name, address and telephone or cellphone and electronic mail numbers, if any, of the convener and his or her deputy;

(b) the name of the organisation on whose behalf the gathering is convened or, if it is not so convened, a statement that it is convened by the convener;

(c) the purpose of the gathering;

(d) the time, duration and date of the gathering;

(e) the place where the gathering is to be held;

(f) the anticipated number of participants;

(g) the proposed number and, where possible, the names of the marshals who will be appointed by the convener, and how the marshals will be distinguished from the other participants in the gathering;

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(h) in the case of a procession or public demonstration—

(i) the exact and complete route of the procession or public demonstration; and

(ii) the time when and the place at which participants in the procession or public demonstration are to assemble, and the time when and the place from which the procession or public demonstration is to commence; and

(iii) the time when and the place where the procession or public demonstration is to end and the participants are to disperse; and

(iv) the manner in which the participants will be transported to the place of assembly and from the point of dispersal; and

(v) the number and types of vehicles, if any, which are to form part of the procession; and

(vi) if a petition or any other document is to be handed over to any person, the place where and the person to whom it is to be handed over.

(3) If a gathering is postponed or delayed, the convener shall forthwith notify the regulating authority thereof, and section 8 shall, with such changes as may be necessary, apply to such postponed or delayed gathering as it applies to gatherings that are not postponed or delayed.

(4) If a gathering is cancelled or called off, the convener shall forthwith notify the regulating authority thereof and the notice given in terms of subsection (1) shall lapse.

(5) Any person who knowingly fails to give notice of a gathering in terms of subsection (1), or of the postponement or delay of a gathering in terms of subsection (3) shall be liable to a fine not exceeding level 10 or to imprisonment for a period not exceeding one year.

8. Consultations, negotiations, amendment of notices, and conditions with respect to gatherings to avoid public disorder

(1) If a regulating authority in receipt of a convening notice for a procession or public demonstration is of the opinion that negotiations are not necessary and that the procession or public demonstration may take place as specified in the convening notice or with such amendment of the contents of the notice as may have been agreed upon by him or her and the convener, he or she shall notify the convener, within three days of receipt of the convener's notice, in writing accordingly.

(2) If a regulating authority in receipt of a convening notice for a public meeting is of the opinion that negotiations are not necessary and that the public meeting may take place as specified in the convening notice, the public meeting may take place without any further notification, written or verbal, on the part of the regulating authority.

(3) If a regulating authority receives credible information on oath that there is a threat that a proposed procession, public demonstration or public meeting will result in serious disruption of vehicular or pedestrian traffic, injury to participants in the procession, public demonstration or public meeting or other persons, or extensive damage to property or other public disorder, he or she shall forthwith advise the convener of the perceived threat and invite the convener to a consultative meeting at a time and venue specified by the regulating authority in order to explore options to prevent the threat, and shall afford an opportunity to the convener to make representations verbally or in writing thereon to the regulating authority before that meeting on whether the perceived threat is real or on the suitability of the time or venue of the meeting:

Provided that the time for the meeting shall be specified for a date no later than seven days, in the case of a procession or public demonstration, or five days, in the case of a public meeting, from the date when the regulating authority received the convening notice.

Provided further that the regulating authority may cancel the proposed meeting or change the time (subject to the previous proviso) or venue of the meeting on the basis of the verbal or written representations of the convener.

(4) At a meeting held in terms of subsection (3)—

(a) the regulating authority may invite, or allow to be present, representatives of such public bodies, including local authorities, and civil society groups, as in the opinion of such regulating authority ought to be present at such meeting, in order to discuss any amendment of the contents of the convening notice and such conditions regarding the conduct of the procession, public demonstration or public meeting as he or she may deem necessary;

(b) discussions shall be held on the contents of the convening notice, amendments thereof or additions thereto and the conditions, if any, to be imposed in respect of the holding of the procession, public demonstration or public meeting so as to meet the objects of this Part;

(c) the regulating authority shall ensure that such discussions take place in good faith.

(5) If at a meeting held in terms of subsection (3) agreement is reached, the procession, public demonstration or public meeting may take place in accordance with the contents of the convening notice, including amendments, if any, to such contents, on which agreement was reached at the meeting.

(6) If at a meeting held in terms of subsection (3) agreement is not reached on the contents of the convening notice or the conditions regarding the conduct of the procession or public demonstration, the regulating authority may, if there are reasonable grounds therefor, of his or her own accord or at the request of an authorised officer impose conditions with regard to the holding of the procession or public demonstration to ensure—

(a) that vehicular or pedestrian traffic, especially during traffic rush hours, is least impeded; or

(b) an appropriate distance between participants in the procession or public demonstration and rival processions or public demonstrations; or

(c) access by non-participants of the gathering to property and workplaces; or

(d) the prevention of injury to persons or damage to property.

(7) The regulating authority shall ensure as soon as possible that a written copy of the convening notice, including any amendment thereof and any condition imposed and the reasons and grounds therefor, is handed to the convener and the authorised member who, and to every party which attended the meeting referred to in subsection (3):

Provided that if the identity or whereabouts of the convener is unknown, or if in view of the urgency of the case it is not practicable to deliver or tender the said written notice and reasons and grounds to him or her, the notice shall forthwith, notwithstanding any provision to the contrary in any other law contained, be published in one or more of the following manners—

(a) in a newspaper circulating where the procession or public demonstration is to be held; or

(b) by means of a radio or television broadcast; or

(c) by the distribution thereof among the public and the affixing thereof in public or prominent places where the procession or public demonstration is to be held; or

(d) by the announcement thereof orally where the procession or public demonstration is to be held; or

(e) by affixing it in a prominent place at the address of the convener specified in the notice.

(8) The convener and the regulating authority shall, respectively, ensure that every marshal and every police officer at the procession or public demonstration know the contents of the convening notice, including any amendment or condition, if any.

(9) After considering representations made in the course of a meeting held in terms of subsection (3), if any, the regulating authority may, if he or she on reasonable grounds is convinced that no amendment or condition contemplated in subsection (5) or (6) would prevent the occurrence of any

of the circumstances contemplated in subsection (3), issue a prohibition notice, giving the reasons and grounds therefor to the convener.

(10) If the regulating authority decides to issue a prohibition notice, he or she shall in a manner contemplated in the proviso to subsection (7), notify the convener, authorised member and every other person with whom he or she has so met or consulted, of the decision and the reasons and grounds therefor.

(11) Any person who knowingly opposes or fails to comply with a prohibition notice or any directions or conditions under which a procession, public demonstration or public meeting is authorised, shall be guilty of an offence and liable to a fine not exceeding level 14 or to imprisonment for a period not exceeding one year or to both such fine and such imprisonment.

9. Exemption of certain gatherings from sections 5, 6, 7 and 8

Sections 5, 6, 7 and 8 shall not apply to gatherings of a class described in the Schedule.

10. Gatherings in vicinity of Parliament, courts and protected places

(1) Subject to subsection (2), all gatherings within a radius of—

(a) twenty metres of the vicinity of the Parliament;

(b) one hundred metres of the vicinity of the Supreme Court, the High Court, a Magistrates Court or any other court;

(c) one hundred metres of any protected place or area declared as such in terms of the Protected Areas and Places Act *[Chapter 11:12]*;

are prohibited.

(2) Subsection (1) does not apply to any gathering for which seven days prior notice has been given to the Speaker of the National Assembly, the Chief Justice, the Judge President or the responsible authority of a place referred to in subsection (1)(c), as the case may be, and for which leave has been granted in writing to the convener thereof:

Provided that the convener shall give prior notice of such gathering in writing, together with the appropriate notice attached thereto, to the regulating authority.

(3) For the avoidance of doubt it is declared that a "gathering" in subsection (1) does not refer to a gathering of any persons who are employed in, or concerned in any business conducted at, Parliament or a court or other place referred to in subsection (1).

11. Appeals

(1) Any convener who is aggrieved by—

(a) any prohibition notice; or

(b) the contents of the directions issued in terms of section 8, or conditions under which a gathering is authorised, including any amendment thereof;

may appeal against it to the Magistrates Court in the area where the gathering is proposed to be held, and the magistrate may confirm, vary or set aside the prohibition notice, direction, condition or order and give such order or direction in the matter as he or she thinks just:

Provided that the noting of an appeal in terms of this section shall not have the effect of suspending any prohibition order appealed against.

(2) An appeal in terms of subsection (1) shall be dealt with on an urgent basis and in any case before the date of the proposed gathering unless, due to the fault of the convener, the appeal is not lodged timeously.

12. Civil liability in certain circumstances of convener of a gathering

(1) If the convener of a gathering—

(a) has not given notice of the holding of the gathering in terms of section 7(1); or

(b) fails or refuses to comply to the best of his or her ability with any direction, notice or order given in terms of section 7 or 8;

he or she shall be liable, at the suit of any injured party, for any loss of or damage to property and any injury to or death of a person occasioned by any public disorder or breach of the peace caused by the gathering.

(2) Where there is more than one convener of a gathering, their liability under this section shall be joint and several, unless the convener or conveners can show on a balance of probabilities that they were not a party to any breach of subsection (1).

(3) In any proceedings in which it is alleged that a convener of a gathering is liable in terms of subsection (1) for any loss, damage, injury or death, the convener shall bear the onus of proving on a balance of probabilities—

(a) that he or she gave notice of the holding of the gathering in terms of section 7;

(b) that he or she complied to the best of his or her ability with any direction or order that is proved to have been made in relation to the gathering.

(4) This section shall be construed as adding to, and not as derogating from, any other law under which a convener of a gathering or any other person may be liable for any loss, damage, injury or death caused by or arising out of or occurring at the gathering.

(5) Subject to Part XIX of the Criminal Procedure and Evidence Act *[Chapter 9:07]*, a court which has convicted a person of any offence in terms of section 7 or 8 that involves any loss, damage, injury or death for which that person is liable in terms of this section shall forthwith award compensation to any person who has suffered personal injury or whose right or interest in property of any description has been lost or diminished as a direct result of the offence.

13. Powers of Police

(1) During the course of a gathering, whether held in compliance with this Act or not, and whether consisting of more or less than fifteen persons, a police officer—

(a) may, if he or she has reasonable grounds to believe that the Police Service will not be able to provide adequate protection for the persons participating in such a gathering, notify the convener and such persons accordingly;

(b) may prevent people participating in the gathering from proceeding to a different place or deviating from the route specified in the convening notice or any amendment thereof or from disobeying any direction or condition to which the holding of the gathering is subject in terms of this Act;

(c) may, in the case of a regulating authority not receiving a notice in terms of section 7(1) more than forty-eight hours before the gathering, restrict the gathering to a place or guide the participants along a route, to ensure—

(i) that vehicular or pedestrian traffic, especially during traffic rush hours, is least impeded, or an appropriate distance between participants in the gathering and rival gatherings; or

(ii) access to property and workplaces; or

(iii) the prevention of injury to persons or damage to property;

(d) may order any person or group of persons interfering or attempting to interfere with a gathering to cease such conduct and to remain at a distance from such gathering specified by him or her;

(e) may, when an incident, whether or not it results from the gathering, causes or may cause persons to gather at any public place, by notice in a manner contemplated in the proviso to section 8(7) specify an area considered by him or her to be necessary for—

(i) the movement and operation of emergency personnel and vehicles; or

(ii) the passage of a gathering; or

(iii) the movement of traffic; or

(iv) the exclusion of the public from the vicinity; or

(v) the protection of property;

(f) take all such steps, including negotiations with the relevant persons, as are in the circumstances reasonable and appropriate to protect persons and property, whether or not they are participating in the gathering.

(2) In the circumstances where the holding or continuance of a gathering is unlawful by virtue of any prohibition notice or any direction or order under section 8, or if, during the course of a lawful gathering, any act is committed that constitutes a danger to persons and property, a police officer of or above the rank of assistant inspector may, and only then, take the following steps—

(a) call upon the persons participating in the gathering to disperse, and for that purpose he or she shall endeavour to obtain the attention of those persons by such lawful means as he or she deems most suitable; and then,

(b) in a loud voice order them in English and in ChiShona or SiNdebele or any other language recognised by the Constitution, to disperse and to depart from the place of the gathering within a time specified by him or her, which shall be reasonable.

(3) If within the time specified under subsection (2)(b) the persons gathered have not so dispersed or have made no preparations to disperse, the police officer concerned may order the police officers under his or her command to disperse the persons concerned and may for that purpose order the use of force, excluding the use of weapons likely to cause serious bodily injury or death.

(4) The degree of force which may be so used shall not be greater than is necessary for dispersing the persons gathered and shall be reasonable and proportionate to the circumstances of the case and the object to be attained.

(5) If any person who participates in a gathering or any person who hinders, obstructs or interferes with persons who participate in a gathering—

(a) kills or seriously injures, or attempts to kill or seriously injure, or shows a manifest intention of killing or seriously injuring, any person; or

(b) destroys or does serious damage to, or attempts to destroy or to do serious damage to, or shows a manifest intention of destroying or doing serious damage to, any immovable property or movable property considered to be valuable;

a police officer of or above the rank of assistant inspector may order the police officers under his or her command to take the necessary steps to prevent the action contemplated in paragraph (a) or (b).

(6) The degree of force which may be so used for the purposes of subsection (5) shall not be greater than is necessary for the prevention of the actions contemplated in subsection (5)(a) or (b), and the force shall be moderated and be proportionate to the circumstances of the case and the object to be attained.

(7) No statutory or common law principles regarding self-defence, necessity and protection of property, shall be affected by the provisions of this Act.

Part III – Enforcement and preservation of public order and security

14. Persons to carry identity documents

(1) In this section—

"arrestable offence" means an offence specified in the First Schedule to the Criminal Procedure and Evidence Act *[Chapter 9:07]*;

"identity document" means—

(a) a document issued to a person in terms of section 7(1) or (2) of the National Registration Act *[Chapter 10:17]*, or a passport or drivers licence issued by or on behalf of the Government of Zimbabwe; or

(b) any visitors entry certificate or other certificate or permit issued to a person in terms of the Immigration Act *[Chapter 4:02]*, or in terms of any enactment relating to refugees; or

(c) any passport, identity document or drivers licence issued by a foreign government.

(2) If a police officer has a reasonable suspicion that any person in a public place has committed or is attempting to commit an offence, the officer may require the person to produce his or her identity document.

(3) Any person who fails to produce his or her identity document immediately on being required to do so by a police officer—

(a) acting in good faith in the course of investigating or preventing an arrestable offence; or

(b) at the scene or in the immediate vicinity of the commission of an arrestable offence committed within the preceding forty-eight hours; or

(c) within a police cordon; or

(d) at a police road block; or

(e) in the immediate vicinity of any area controlled or protected in terms of the Defence Act *[Chapter 11:02]*, the Protected Places and Areas Act *[Chapter 11:12]* or the Parks and Wild Life Act *[Chapter 20:14]*; or

(f) at a public gathering or a public meeting of a political nature;

shall be afforded by the police officer an opportunity, within seven days thereafter, of producing his or her identity document at a police station specified by notice in writing issued by the police officer who required him or her to produce his or her identity document.

(4) Any person who fails to produce his or her identity document within seven days mentioned in subsection (4) shall be guilty of an offence and liable to a fine not exceeding level 3.

15. Cordon and search

(1) A police officer of or above the rank of inspector may establish a cordon around any area if he or she considers it reasonably necessary in the interests of defence, public safety, public order, public morality, public health, regional or town planning or the general public interest.

(2) Any person who, otherwise than in terms of a written permit issued by a police officer, knowingly enters or leaves any area around which a cordon has been established under subsection (1) shall be guilty of an offence and liable to a fine not exceeding level 5 or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

(3) A peace officer may without warrant, within the area around which a cordon has been established in terms of subsection (1)—

(a) conduct a search for—

(i) any person reasonably suspected of having committed an offence relating to or arising out of public disorder or public violence which gave rise to the establishment of the cordon; or

(ii) any evidence relating to an offence referred to in subparagraph (i); or

(b) arrest any person referred to in paragraph (a).

16. Powers of stopping and searching

(1) A police officer may stop and, without warrant—

(a) search any person, vehicle or vessel entering or leaving Zimbabwe and any person in or upon such vehicle or vessel; and

(b) seize any thing;

in circumstances where there are reasonable grounds for believing that the search or seizure is necessary in the interests of public safety, public order or public health or for the prevention, investigation or detection of a criminal offence.

(2) If a police officer of or above the rank of inspector considers it reasonably necessary in the interests of public safety, public order or public health to exercise without warrant the powers referred to in subsection (1) in respect of vehicles, vessels and persons in or upon such vehicles or vessels anywhere in Zimbabwe, he or she may authorise the erection of a road block or checkpoint for the purposes of stopping vehicles or vessels so that they can be searched, and thereupon such powers may be so exercised.

(3) Any person who fails or refuses to stop when so required in terms of this section or takes any measures to prevent being stopped or searched in terms of this section shall be guilty of an offence and liable to a fine not exceeding level 6 or to imprisonment for a period not exceeding twelve months or to both such fine and such imprisonment.

(4) For the purposes of this section a "checkpoint" is any barrier otherwise than on a road that is clearly signposted as a police checkpoint whereat three or more police officers may conduct security checks in terms of this section on persons, vehicles or vessels passing through the checkpoint.

17. Powers of police officers in relation to aircraft, aerodromes and airstrips

(1) In this section—

"aerodrome" has the meaning given to it by section 2 of the Civil Aviation Act *[Chapter 13:16]*;

"airstrip" means a cleared area for the landing and taking-off of aircraft.

(2) A police officer may without warrant—

(a) board any aircraft that has landed in or is about to depart from Zimbabwe and search it and any person in or upon such aircraft; and

(b) for the purpose of paragraph (a) but subject to subsection (4)—

(i) enter upon and search any aerodrome or airstrip; and

(ii) remain at any aerodrome or airstrip for so long as he or she considers it necessary for the proper performance of his or her duties;

and

(c) search any person present within the aerodrome or airstrip or in the immediate vicinity of the aerodrome or airstrip; and

(d) seize any thing;

in circumstances where there are reasonable grounds for believing that the search or seizure is necessary in the interests of public safety, public order or public health or for the prevention, investigation or detection of a criminal offence.

(3) If a police officer of or above the rank of inspector considers it reasonably necessary in the interests of public safety, public order or public health to exercise without warrant the powers referred to in subsection (2) in respect of aircraft, aerodromes or airstrips and persons in or upon such aircraft, aerodromes or airstrips anywhere in Zimbabwe, he or she may, subject to subsection (4), authorise the presence of any police officer at such aerodrome or airstrip and thereupon such powers may be so exercised.

(5) If the Minister is of the opinion that it is desirable in the interests of defence, public safety, public order or public health to do so, he may, by notice in a statutory instrument, declare that during such period as may be specified in such notice, police officers may, without warrant, exercise the powers referred to in subsection (2) or (3) in respect of aircraft, aerodromes or airstrips and persons in or upon such aircraft, aerodromes or airstrips anywhere in Zimbabwe, and for that purpose to remain at an aerodrome or airstrip for more than forty-eight hours at a time without the consent of the Civil Aviation Authority referred to in section 4 of the Civil Aviation Act *[Chapter 13:16]* or the owner of the aerodrome or airstrip, as the case may be.

[Please note: numbering as in original.]

(6) Any person who hinders or obstructs any police officer in the exercise of his or her powers in terms of this section or takes any measures to prevent an aerodrome, airstrip or aircraft or any person in or upon such aircraft, aerodrome or airstrip being searched in terms of this section shall be guilty of an offence and liable to a fine not exceeding level 6 or to imprisonment for a period not exceeding twelve months or to both such fine and such imprisonment.

Part IV – General

18. When Defence Forces may assist Police Service under this Act

(1) In this section—

"promptly" means within seven days when Parliament next sits after any deployment of the Defence Forces in terms of subsection (2).

(2) If, upon a request made by the Commissioner-General of Police, the Minister is satisfied that any regulating authority requires the assistance of the Defence Forces for the purpose of suppressing any civil commotion or disturbance in any police district, he or she may request the President to authorise the Defence Forces to assist the police in the exercise of their functions under this Act in the police district concerned.

(3) When the Defence Forces are deployed within Zimbabwe pursuant to subsection (2), the President must cause Parliament to be informed promptly and in appropriate detail of the reasons of their deployment and the place where they were deployed.

(4) Where authority is given under subsection (2) for the Defence Forces to assist the police—

(a) every member of the Defence Forces who has been detailed to assist the police in any police district in the exercise of their functions under this Act shall be under the command of the regulating authority concerned; and

(b) a member of the Defence Forces who is assisting a police officer in the exercise of his or her functions under this Act shall have the same powers, functions and authority, and be subject

to the same responsibilities, discipline and penalties, as a member of the Police Service, and liable in respect of acts done or omitted to be done to the same extent as he or she would have been liable in the same circumstances if he or she were a member of the Police Service, and shall have the benefit of any indemnity to which a member of the Police Service would in the same circumstances be entitled.

19. Powers of seizure and forfeiture in relation to vehicles, aircraft and vessels

(1) Where any person is convicted of an offence under Chapter III ("Crimes Against the State"), Chapter IV ("Crimes Against Public Order") or section 176 ("Assaulting or resisting peace officer") or section 177 ("Undermining of police authority") of the Criminal Law Code, the court may order that any vehicle, aircraft or vessel used to commit or enable the offence to be committed shall be forfeited to the State:

Provided that, if it is proved that such vehicle, aircraft or vessel is not the property of the person convicted and that its owner was—

(a) unaware that the vehicle, aircraft or vessel, as the case may be, was being so used; or

(b) unable to prevent its use for the purpose of or in connection with the commission of the offence;

the court shall not make any such order in respect thereof.

(2) Subject to subsection (3), where a police officer believes on reasonable grounds that any vehicle, aircraft or vessel which is liable to forfeiture in terms of subsection (1) is likely to be removed from Zimbabwe unless it is detained, he or she may seize and detain any such vehicle, aircraft or vessel so that it may be submitted to the jurisdiction of the court to be dealt with in accordance with subsection (1).

(3) A magistrate may, on application by the owner of a vehicle, aircraft or vessel seized in terms of subsection (2), permit such owner, on such sureties as the magistrate may approve—

(a) to enter into a bond for an amount approved by the magistrate; and

(b) to deposit with the clerk of court such sum, if any, as may be fixed by the magistrate to satisfy any judgment which may be given on the bond;

whereupon the vehicle, aircraft or vessel shall be returned to the owner.

(4) A bond entered into in terms of subsection (3) shall be subject to the condition that the owner shall submit the vehicle, aircraft or vessel to the jurisdiction of the court trying the offence concerned when so required, and may be subject to such other conditions as the magistrate thinks fit to impose in the circumstances.

(5) Upon breach of any condition of a bond entered into in terms of subsection (3), any court may, on application by the Minister, give judgment against such person or his or her sureties in accordance with the provisions of the bond.

20. Powers of search, seizure and forfeiture generally

(1) For the avoidance of doubt it is declared that—

(a) an arrest or search of any person or premises or of any person or premises in any area in terms of this Act shall be conducted in accordance with Parts V and VI of the Criminal Procedure and Evidence Act *[Chapter 9:07]* or any other enactment which regulates such arrest or search, and, in particular, section 41(4) of the Criminal Procedure and Evidence Act *[Chapter 9:07]* shall apply to the search of any woman;

(b) except to the extent expressly provided in this Act, Part VI of the Criminal Procedure and Evidence Act *[Chapter 9:07]* shall apply to any weapon, item capable of use as a weapon,

publication, equipment, vehicle, aircraft, vessel or other article seized or detained in terms of this Act.

(2) The powers conferred by Parts V and VI of the Criminal Procedure and Evidence Act *[Chapter 9:07]* on a police officer may be exercised by any peace officer within the area around which a cordon has been established in terms of section 15(1).

21. Special jurisdiction of magistrates

(1) Notwithstanding anything in the Magistrates Court Act *[Chapter 7:10]* or in any other enactment, where a person is convicted of a contravention of any of the provisions of this Act or of Chapter III ("Crimes Against the State"), Chapter IV ("Crimes Against Public Order") or section 176 ("Assaulting or resisting peace officer") or section 177 ("Undermining of police authority") of the Criminal Law Code—

(a) a court of a magistrate, other than a regional, provincial or senior magistrate, shall have special jurisdiction to impose, on summary trial or on remittal by the Prosecutor-General of the case for trial or sentence, a fine not exceeding level 8 or imprisonment for a period not exceeding three years;

(b) a court of a senior or provincial magistrate shall have special jurisdiction to impose, on summary trial or on remittal by the Prosecutor-General of the case for trial or sentence, a fine not exceeding level 12 or imprisonment for a period not exceeding ten years;

(c) a court of a regional magistrate shall have special jurisdiction to impose, on summary trial or on remittal by the Prosecutor-General of the case for trial or sentence, a fine not exceeding level 14 or imprisonment for a period not exceeding twenty years.

(2) Subsection (1) shall apply in relation to a person who is convicted of—

(a) attempting to contravene or inciting another person or conspiring with another person to contravene any of the provisions of this Act or any of the provisions of the Criminal Law Code referred to in subsection (1); or

(b) being an accessory after the fact to the commission of the crime of contravening any of the provisions of this Act or any of the provisions of the Criminal Law Code referred to in subsection (1);

as though he or she had been convicted of a contravention of any of the provisions of this Act or of the provisions of the Criminal Law Code referred to in subsection (i).

(3) Nothing in this section shall be construed as authorising a court to impose for any contravention of any provision of this Act or any of the provisions of the Criminal Law Code referred to in subsection (1), a punishment greater than may, under the relevant provision of this Act or the Criminal Law Code, be imposed therefor, or as preventing a court from imposing, as often as it is specially authorised by any enactment to do so, any other punishment than the punishment mentioned in this section.

22. Amendment of Schedule

(1) Subject to subsection (2), the Minister may, by notice in a statutory instrument, at any time add to, amend or replace the Schedule.

(2) Where the Minister seeks to amend the Schedule by reducing the classes of public gathering described in the Schedule, the Minister shall, within the next fourteen days on which Parliament sits after he or she makes a statutory instrument in terms of subsection (1), lay it before Parliament, and the statutory instrument shall not come into force unless approved by resolution of Parliament.

23. Saving of other laws as to riotous gatherings, etc.

Nothing in this Act shall be construed as affecting the right or duty of any person under any other law to disperse riotous gatherings and to prevent or suppress other unlawful acts, or to assist in such dispersal, prevention or suppression.

24. Repeal of Cap. 11:17

The Public Order and Security Act *[Chapter 11:17]* is repealed.

Schedule (Section 9 and 22)

Classes of public gatherings to which sections 5, 6, 7 and 8 does not apply

Public gatherings—

(a) held exclusively for *bona fide* religious, educational, recreational, sporting or charitable purposes or any two or more such purposes;

(b) held exclusively for the purposes of—

(i) baptism; or

(ii) wedding; or

(iii) funeral; or

(iv) cremation;

(c) of members of professional, vocational or occupational bodies held for purposes which are not political;

(d) for the purposes of agricultural shows;

(e) at any *bona fide* theatrical, cinematographic or musical entertainment or any circus or fireworks display;

(f) at any *bona fide* sale of goods or animals;

(g) at a draw for prizes in any lottery held in terms of the Lotteries and Gaming Act *[Chapter 10:26]*;

(h) for the purposes of a luncheon, dinner or dance given or held by any club, association or organisation which is not of a political nature;

(i) held by any club, association or organisation which is not of a political nature and at which the discussions and matters dealt with are not of a political nature;

(j) held by a registered trade union for *bona fide* trade union purposes for the conduct of business in accordance with the Labour Act *[Chapter 28:01]*;

(k) held to form any club, association or organisation which is not of a political nature;

(l) for the purposes of an industrial show;

(m) meetings of traditional leaders with their subjects.

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